

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER  
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND  
IDENTIFIERS ARE FICTIONAL**

Branch source B18: certiorari-abandonment dissolution route marker B18.

# **United States Court of Appeals for the Fourth Circuit**

## **Mara Ellison v. Officer Nolan Rusk**

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

### **Notice Abandoning Planned Certiorari and Order Dissolving Mandate Stay**

Filed and entered August 10, 2026

Officer Nolan Rusk gives notice that he will not file a petition for a writ of certiorari from the judgment entered June 30, 2026. After reviewing the completed draft, the governing decisions, and the limited prospect of review, Rusk has elected to end the proposed Supreme Court proceeding. No certiorari petition has been docketed, and no application to extend the filing period has been submitted or granted.

This notice satisfies the reporting condition in the Court's July 20 mandate-stay order. It is filed before 5:00 p.m. Eastern time on August 10 and has been served electronically on Mara Ellison's counsel. Rusk requests that the panel dissolve the stay and authorize prompt mandate issuance. He does not seek reconsideration of the opinion or an additional wind-down interval.

Abandonment is a procedural election, not an admission about the underlying encounter or the legal merits. Rusk continues to deny that he used excessive force and preserves his factual account for district proceedings. He recognizes that the panel's legal qualified-immunity holding remains binding on remand and that the factual-sufficiency dispute was not decided in the collateral appeal.

Submitted through counsel for Officer Nolan Rusk on August 10, 2026.

## **Panel Order Dissolving the Stay**

Upon consideration of Rusk's notice, the limited stay of mandate entered July 20 is **DISSOLVED** effective August 10, 2026. The sole stated purpose of the stay was to permit a defined period for final certiorari review and filing. Rusk's election not to proceed eliminates that predicate before any petition or extension could continue relief under Federal Rule of Appellate Procedure 41(d)(2).

This is not an order responding to a Supreme Court denial. Rule 41(d)(4)'s command concerning receipt of an order denying certiorari therefore does not apply. Nor did the stay simply lapse in silence; a timely abandonment notice supplied the event, and the panel affirmatively ends relief through this order.

The mandate shall not be treated as issued today. To provide a definite administrative sequence, the Court directs the Clerk to release and issue it on August 11, 2026. That next-day direction is authorized by Rule 41(b)'s power to set issuance timing and by the terms reserved in the grant order. No additional seven-day period follows dissolution of a granted stay whose terms and ending event control.

The June 30 judgment and opinion remain unchanged. Their disposition will become effective upon issuance tomorrow. The order neither resolves disputed movements during the camera obstruction nor alters the plaintiff-favorable assumptions governing the legal appeal.

## **Clerk Instructions and Final Status**

The Clerk shall enter Rusk's notice and this combined dissolution order as separate procedural components of the same August 10 document. The counterfactual docket must show: limited stay granted July 20; abandonment notice filed August 10; stay dissolved August 10; mandate directed for August 11. No certiorari-denial event should be recorded because no petition was filed.

Counsel shall receive immediate electronic service. The district clerk may be notified that remand is expected, but jurisdiction does not return until the mandate actually issues. Any district scheduling action dependent on remand must await that event.

No security was posted, so dissolution requires no bond release. Existing evidence-preservation obligations remain in place through district proceedings. The circuit costs process continues according to the June 30 judgment and does not postpone issuance.

This route is distinct from denial of a mandate-stay motion. It also differs from ordinary expiration without notice and from continuation following a filed petition. Workflow records must not combine those mutually exclusive events. August 11 is fixed specifically for this abandonment path.

By order of Chief Judge Alder and Judges Reed and March, the limited mandate stay is dissolved and the Clerk is directed to issue the mandate on August 11, 2026.